

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

MR. JUSTICE ATHAR MINALLAH
MR. JUSTICE IRFAN SAADAT KHAN
MR. JUSTICE MALIK SHAHZAD AHMAD KHAN

Criminal Petition Nos.189, 92-L of 2020 & 1810-L of 2019

Crl.M.A No.2165 of 2025 in Crl.P.No.1810-L of 2019

Crl.M.A No.2166 of 2025 in Crl.P.No.92-L of 2020

(On appeal against the judgment dated 04.12.2019 passed by the Lahore High Court, Lahore in Crl. Appeal No.3827/2015 & Capital Sentence Reference No.01-T/2016)

1. Azhar Iqbal

2. Zafar Iqbal

(Petitioners in Cr.P-189/2020)

Muhammad Nawaz Cheema

*(Petitioner in Cr.P-1810-L/2019 &
Cr.M.A-2165/2025)*

Muhammad Nawaz

*(Petitioner in Cr.P-92-L/2020 &
Cr.M.A-2166/2025)*

Versus

The State through P.G Punjab,
Lahore & another

(Respondents in Cr.P-189/2020)

The State, etc

*(Respondents in Cr.P-1810-L/2019 &
Cr.M.A-2165/2025)*

Zafar Iqbal, etc

*(Respondents in Cr.P-92-L/2020 &
Cr.M.A-2166/2025)*

For the Petitioner (s):

Mr. Mazhar Iqbal Sidhu ASC

(In Cr.P-189/2020)

Mian Muhammad Ismail Thaheem ASC

*(In Cr.Ps-92-L/2020, 1810-L/2019, as well as,
Crl.M.As-2165/2025 & 2166/2025) and
for Tariq Mehmood (PW-23) in In Cr.P-189/2020*

For the State:

Mr. Irfan Zia, Addl.P.G, Punjab

Date of Hearing:

02.10.2025

J U D G M E N T

MALIK SHAHZAD AHMAD KHAN, J:-

Crl.M.A.Nos.2165 & 2166/2025

Through these applications, the applicant seeks permission to contest the main criminal petitions (*Crl.P.Nos.1810-L/2019 & 92-L/2020*). We have noted that the applicant is brother of Muhammad

Nawaz complainant in the titled petitions, who had died. Tariq Mehmood applicant is also injured eye-witness of the occurrence, therefore, in the light of grounds taken in these applications, the same are allowed, Tariq Mehmood applicant is permitted to contest the titled petitions and Mian Muhammad Ismail Thaheem ASC representing Tariq Mehmood applicant is allowed to argue the matter on behalf of the complainant party, before this Court.

Criminal Petition No.189 of 2020

2. Through the instant petition, the petitioners have sought leave against impugned judgment dated 04.12.2019, passed by the learned Lahore High Court, Lahore. Azhar Iqbal and Zafar Iqbal petitioners along with Kashif Adnan, Tariq, Muhammad Inayat, Muhammad Nawaz, Muhammad Aslam, Qaisar Shahzad, Shamshad Ahmad, Javed Iqbal, Mst. Shazia Bibi, Mst. Musarat Bibi, Shahid Ijaz, Qamar Zaman and Mazhar Iqbal (co-accused since acquitted), were tried by the learned Judge, Anti-Terrorism Court-II, Gujranwala, in case FIR No.950/2013, dated 23.09.2013, under sections 302, 324, 148, 149, 120-B, 337F(iii) PPC read with sections 21-I, 21-L & 7 of the Anti-Terrorism Act, 1997, registered at police station Civil Lines, District Gujranwala. The learned trial Court vide judgment dated 05.12.2015, convicted the petitioners **(i)** under sections 302(b)/34 PPC to death sentence each and to pay compensation amount under section 544-A Cr.P.C Rs.5,00,000/- each to the legal heirs of Jamshaid Iqbal deceased, **(ii)** under section 7(a) of the Anti-Terrorism Act, 1997 to death sentence each and to pay fine of Rs.5,00,000/- each and in default thereof to further undergo six (06) months simple imprisonment each, **(iii)** under sections 324/34 PPC to ten (10) years imprisonment each and to pay fine of Rs.2,00,000/- each and in default thereof to further undergo six (06) months simple

imprisonment each, **(iv)** under section 7(c) of the Anti-Terrorism Act, 1997 to ten (10) years imprisonment each and to pay fine of Rs.2,00,000/- each and in default thereof to further undergo six (06) months simple imprisonment each, **(v)** under section 337F(iii) PPC to three (03) years imprisonment each and to pay Daman Rs.25000/- each payable to Tariq Mehmood and **(vi)** under section 21-L of the Anti-Terrorism Act, 1997 to five (05) years imprisonment each. All the sentences of imprisonment were ordered to run concurrently and benefit of section 382-B Cr.P.C, was also extended to the petitioners. Vide the same impugned judgment Kashif Adnan, Tariq, Muhammad Inayat, Muhammad Nawaz, Muhammad Aslam, Qaisar Shahzad, Shamshad Ahmad, Javed Iqbal, Mst. Shazia Bibi, Mst. Musarat Bibi, Shahid Ijaz, Qamar Zaman and Mazhar Iqbal (co-accused), were acquitted by the learned trial Court while giving them the benefit of doubt. The learned High Court dismissed the appeal filed by the petitioners vide impugned judgment dated 04.12.2019 and maintained the convictions and sentences awarded to Azhar Iqbal (petitioner), whereas while maintaining the convictions of Zafar Iqbal (petitioner) under Section 302(b)/34 PPC and 7(a) of the Anti-Terrorism Act, 1997, altered the sentence of death of said petitioner into imprisonment for life. However, the remaining convictions and sentences of Zafar Iqbal (petitioner), were maintained and upheld.

3. Arguments heard. Record perused.

4. As per contents of the FIR, on 23.09.2013, at 9.40 a.m, the complainant party came to the Court of Mr. Muhammad Aslam Gondal, learned Additional Sessions Judge, Gujranwala, in order to attend the proceedings of a case. They (PWs), were present inside the abovementioned Court, when Azhar Iqbal and Zafar Iqbal (petitioners)

along with Ahsan alias Kalu (co-accused since P.O) and three (03) unknown accused while armed with pistols entered the said Courtroom. Ahsan alias Kalu (co-accused since P.O), made a fire shot with his pistol, which landed on the forehead of Jamshed Iqbal (deceased). Azhar Iqbal (petitioner), thereafter made a fire shot with his pistol, which landed on the left side of the chest of Jamshed Iqbal (deceased). Azhar Iqbal (petitioner), then made second fire shot with his pistol, which landed on the left elbow of the deceased. Zafar Iqbal (petitioner), thereafter made a fire shot with his pistol, which landed on the face of Jamshed Iqbal (deceased). Ahsan alias Kalu (co-accused since P.O), then made two (02) fire shots with his pistol, which landed on the left side of umbilicus/abdomen of Jamshed Iqbal (deceased). All the accused thereafter made fire shots with their respective firearms at Jamshed Iqbal (deceased). Ahsan alias Kalu (co-accused since P.O), then made another fire shot with his pistol, which landed on the left thigh of Tariq Mehmood (PW-23). The petitioner and their co-accused thereafter fled away from the spot. Jamshed Iqbal succumbed to the injuries when he was being transported to the hospital.

The motive behind the occurrence was that two brothers namely Basharat Ahmad and Iftikhar Ahmad of Jamshed Iqbal deceased and one gunman namely Abullah were earlier murdered by Zafar Iqbal accused etc and FIRs of the said murder cases were lodged at police station Ferozewala. Jamshed Iqbal (deceased), was the complainant, whereas Tariq Mehmood (PW-23), was an eye-witness in the said cases. The occurrence of the present case was on account of the abovementioned grudge, hence the FIR of this case.

5. We have noted that for single deceased namely Jamshed Iqbal and one injured of this case namely Tariq Mehmood (PW-23), the

complainant party implicated as many as three (03) named and three (03) unknown accused in the FIR, whereas two (02) additional accused namely Mazhar Iqbal and Javed Iqbal were also implicated in the FIR with the allegation of abetment. Subsequently the complainant party implicated total sixteen (16) accused persons in this case including Ahsan alias Kalu (co-accused since P.O), for the murder of single deceased and one injured of this case. Out of the said sixteen (16) accused persons, trial of fifteen (15) accused persons was conducted in this case. Thirteen (13) co-accused of the petitioners have already been acquitted by the learned trial Court.

6. Insofar as the injury on the left thigh of Tariq Mehmood (PW-23), is concerned, the said injury was not assigned to the present petitions and the role of causing of the said injury on the body of Tariq Mehmood (PW-14), was assigned to Ahsan alias Kalu (co-accused since P.O).

It is further noteworthy that as per contents of the FIR, Zafar Iqbal (petitioner), was assigned the role of causing a single firearm injury on the face of Jamshed Iqbal (deceased). However as per postmortem report, there was no injury on the face of the deceased. There was one injury i.e., injury No.,1, which was on the left eye of Jamshed Iqbal (deceased) but we have noted that Ahsan alias Kalu (co-accused since P.O), was also assigned a firearm injury on the forehead of Jamshed Iqbal (deceased) and as such injury No.1, was assigned to the said co-accused, therefore, the role attributed to Zafar Iqbal (petitioner), in the contents of the FIR of causing a firearm injury on the face of Jamshed Iqbal (deceased), was not supported by the medical evidence. The prosecution witnesses while realizing the abovementioned fact, changed their stance in respect of the role attributed to Zafar Iqbal (petitioner), while appearing before the learned trial Court. In their statements

before the learned trial Court, they did not state that any fire shot made by Zafar Iqbal (petitioner), landed on the face of Jamshed Iqbal (deceased) rather they attributed a joint role to Zafar Iqbal and Azhar Iqbal (petitioners) of causing firearm injuries on the right flank and on the right buttock of Jamshed Iqbal (deceased). The abovementioned PWs categorically denied that they assigned a role to Zafar Iqbal (petitioner) of causing a firearm injury on the mouth of Jamshed Iqbal (deceased), in their statements, recorded under section 161 Cr.P.C. They were duly confronted with their previous statements and the dishonest improvements made by them qua the role of the said petitioner were brought on the record. Relevant part of the statement of the injured eye-witness of this case namely Tariq Mehmood (PW-23), in his examination-in-chief and cross-examination are reproduced hereunder for ready reference:-

Examination-in-chief

“.....Zafar Iqbal and Azhar Iqbal made fire shots from their respective pistols which hit the deceased Jamshaid Iqbal on the right flank and on the right buttock and Jamshaid Iqbal deceased fell down... ..”

Cross-examination

“.....I got recorded in my statement before the police that Zafar Iqbal and Azhar Iqbal made fire shot with their respective pistol which hit Jamshaid on right flank and on the right buttock. Confronted with Ex.DE, wherein it is not so recorded. I had not recorded in my statement under section 161 Cr.P.C before the police that Zafar Iqbal alias Zafri made fire shot which hit Jamshaid Iqbal deceased on his mouth. Confronted with Ex.DF wherein it is so recorded.....”

Similar statements were made by the remaining prosecution eye-witnesses. They were duly confronted with their previous statements and the dishonest improvements made by them qua the role of Zafar

Iqbal petitioner, were brought on the record. It is, therefore, evident that as the role attributed to Zafar Iqbal (petitioner), in the FIR and in the statements of the prosecution eye-witnesses before the police, was not supported by the medical evidence, therefore, the prosecution eye-witnesses made dishonest improvements in their statements recorded by the learned trial Court in order to bring their evidence in line with the medical evidence. It is by now well settled that if a prosecution witness makes dishonest improvement in his statement regarding material aspects of the case or he makes dishonest improvement in his statement to bring his evidence in line with the medical evidence then the said witness is not worthy of reliance as observed in the judgments reported as 'Akhtar Ali and others v. The State' (2008 SCMR 6) and 'Muhammad Rafique and others v. The State and others' (2010 SCMR 385).

7. We have further noted that as per contents of the FIR, Azhar Iqbal (petitioner), was assigned the role of making two (02) fire shots on the body of Jamshed Iqbal (deceased), out of which one landed on the chest and the second landed on the left elbow of the deceased. Likewise, Ahsan alias Kalu (co-accused since P.O), was also assigned the role of making three fire shots on the body of Jamshed Iqbal (deceased), out of which one landed on the forehead and two (02) landed on the left side of abdomen of the deceased. According to the postmortem report of the deceased, there was no injury on the chest of the deceased which was assigned to Azhar Iqbal petitioner.

Although learned counsel for the petitioners has argued that in the postmortem report of Jamshed Iqbal (deceased), there was injury No.2, on the epigastrium area and the said injury was attributed to Azhar Iqbal (petitioner) but it is noteworthy that in the dissection

column of the postmortem report of the deceased, it was categorically mentioned that under the said injury i.e., injury No.2, stomach of the deceased was injured, which shows that the above-mentioned injury, as well as, injury No.3, were in the abdominal area of the deceased and the said injuries were assigned to Ahsan alias Kalu (co-accused since P.O), who as per contents of the FIR caused two (02) firearm injuries on the abdomen of the deceased. As regards the injury assigned to Azhar Iqbal (petitioner), on the left elbow of Jamshed Iqbal (deceased), is concerned, we have further noted that as per postmortem report and pictorial sketch Ex.(Ex.PH/2), there were different exit wounds on the body of Jamshed Iqbal (deceased), therefore, there was every possibility that the injury on the left elbow of the deceased was result of one of the same fire shot, which caused injuries No.2, 3, 4 & 5, which injuries were in the area of abdomen, buttock and iliac crest of the deceased and the said injuries had also exit wounds.

8. We have also noted that no weapon was recovered from the possession of Zafar Iqbal (petitioner), whereas the PFSA report regarding the pistol allegedly recovered at the pointing out of Azhar Iqbal (petitioner), was in the negative. We are, therefore, of the view that the prosecution case has not been corroborated against the petitioners by the recoveries of the weapons of offence.

9. It is further noteworthy that according to the prosecution case, the occurrence took place inside the Courtroom of Mr. Muhammad Aslam Gondal, learned Additional Sessions Judge, Gujranwala. It has been admitted by the prosecution witnesses that the CCTV cameras were installed in the corridors situated outside the courtrooms, however, it is claimed by the prosecution that there was no CCTV camera installed inside the courtroom where the occurrence took place,

which claim has been controverted by learned counsel for the petitioners. We have noted that no report of the concerned Court was produced in the prosecution evidence that CCTV cameras were not installed inside the courtroom of Mr. Muhammad Aslam Gondal, ASJ Gujranwala, on the day of occurrence. Even CCTV footage of the cameras installed in the corridor outside the courtrooms was not produced in the prosecution evidence in order to establish that the petitioners were present at the spot or they can be seen in the said camera recordings while entering and coming out of the abovementioned courtroom at the time of occurrence. An excuse was made in this respect by the prosecution that the even CCTV cameras installed in the corridors outside the abovementioned courtroom were out of order on the relevant day but as mentioned earlier, no report of the district Courts Gujranwala was produced in this respect by the prosecution in support of its abovementioned claim. We are, therefore, of the view that an important piece of evidence was withheld by the prosecution without any valid justification, therefore, an adverse inference under Article 129(g) of Qanun-e-Shahadat Order, 1984, can validly be drawn against the prosecution that had the above-mentioned piece of evidence (CCTV camera recordings) been produced in the evidence, the same would not have supported the prosecution case. Reference in this context may be made to the judgments reported as "Lal Khan v. The State" (2006 SCMR 1846), "Riaz Ahmed v. The State" (2010 SMCR 846), "Abdul Qadeer v. The State" (2024 SCMR 1146) and "Riasat Ali v. The State" (2024 SCMR 1224).

10. After disbelieving the prosecution evidence qua the ocular account, recovery of weapons of offence and the medical evidence, the petitioners cannot be convicted and sentenced merely on the basis of

motive alleged against them. Even otherwise, the motive is a double-edged weapon, which can be a reason for the commission of offence and the at the same time it may be a reason of false involvement of an accused in a case.

11. As mentioned earlier, total sixteen (16) accused have been implicated in this case by the prosecution for the single deceased and one injured of this case. Thirteen (13) co-accused of the petitioners have already been acquitted from the case. Under the circumstances, there is every likelihood that the petitioners were falsely/malafidely implicated in this case by the complainant, while using the wider-net.

12. Keeping in view all the aforementioned facts, we have come to this irresistible conclusion that the prosecution has failed to prove its cases against the petitioners beyond the shadow of doubt. It is by now well settled that if there is a single circumstance, which creates doubt in the prosecution story then the same is sufficient to acquit the accused, whereas the instant case is replete with number of circumstances, which have created serious doubts in the prosecution story. Reference in this context may be made to the judgments reported as “Tarig Pervez Vs The State” (1995 SCMR 1345) and “Muhammad Akram Vs The State” (2009 SCMR 230). Consequently, this petition (Crl.P.No.189/2020), is converted into an appeal and allowed. The judgments dated 04.12.2019 and 15.12.2015, of the learned High Court and the learned trial Court, respectively are hereby set aside. The petitioners are acquitted of all the charges while giving them the benefit of doubt. They shall be released from the jail forthwith unless required to be detained in any other case.

Criminal Petitions No.92-L/2020 & 1810-L/2019

13. Insofar as these criminal petitions filed by Muhammad Nawaz petitioner/complainant for enhancement of sentences awarded to Azhar

Iqbal (respondent No.14, in Crl.P-1810-L/2019) and Zafar Iqbal (respondent No.1 in Crl.P-92-L/2020 & respondent No.15 in Crl.P-1810-L/2019) and against the acquittal of Kashif Adnan, Tariq, Muhammad Inayat, Muhammad Nawaz, Muhammad Aslam, Qaisar Shahzad, Shamshad Ahmad, Javed Iqbal, Mst. Shazia Bibi, Mst. Musarat Bibi, Shahid Ijaz and Qamar Zaman (respondents No.2 to 13 in Crl.P-1810-L/2019), are concerned, it is pertinent to mention here that we have already acquitted Azhar Iqbal and Zafar Iqbal (respondents) in view of our findings recorded in preceding paragraphs of this judgment, while giving them the benefit of doubt. We have further noted that the remaining respondents were also rightly acquitted in this case on the basis of cogent reasons. Learned counsel for the petitioner/complainant could not point out any illegality or material irregularity in the impugned judgment qua the findings of acquittal of the above-referred respondents. Under the circumstances, there is no substance in these criminal petitions, hence the same are hereby dismissed.

JUDGE

JUDGE

JUDGE

Islamabad, the
02nd of October, 2025
Not Approved For Reporting
Aftaz